

SEARCH WARRANT

G.L. c. 276 sections 1-7

TRIAL COURT OF MASSACHUSETTS

DISTRICT COURT DEPARTMENT

Plymouth

Superior

SEARCH WARRANT DOCKET NUMBER

03 59 8w 37

TO THE SHERIFFS OF OUR SEVERAL COUNTIES OR THEIR DEPUTIES, ANY STATE POLICE OFFICER, OR ANY CONSTABLE OR POLICE OFFICER OF ANY CITY OR TOWN, WITHIN OUR COMMONWEALTH:

Proof by affidavit, which is hereby incorporated by reference, has been made this day and I find that there is **PROBABLE CAUSE** to believe that the property described below:

has been stolen, embezzled, or obtained by false pretenses
is intended for use or has been used as the means of committing a crime
has been concealed to prevent a crime from being discovered
is unlawfully possessed

X is evidence of a crime or is evidence of criminal activity
other (specify) Murder

YOU ARE THEREFORE COMMANDED within a reasonable time and in no event no later than seven days from the issuance of this search warrant to search for the following property:

(1) tablet with a blue case with a visible model number of K72LL4. This tablet with a blue case was located on the kitchen counter near the sink at the residence of 47 Summer Street Duxbury, Massachusetts, as a result of a search warrant, which was executed on Wednesday January 25, 2023.

☒ At: See Attachment A

Which is in the possession of: Massachusetts State Police

☐ On the person or in the possession of

You are are not also authorized to conduct the search at any time during the night

You are are not also authorized to enter the premises without announcement

You are are not also commanded to search any person present who may be found to have such property in his or her possession or under his control or to whom such property may have been delivered

YOU ARE FURTHER COMMANDED if you find such property or any part thereof, to bring it, and when appropriate, the persons in whose possession it is found before the **BROCKTON DIVISION** of the District Court Department

Date Issued: 3-9-23

Signature of Justice, Clerk-Magistrate, or Assistant Clerk

x

First or Administrative Justice
WITNESS: Smith J

Printed Name of Justice, Clerk-Magistrate, or Assistant Clerk

Brendon H. Bernz F.R.

RETURN OF OFFICER SERVING SEARCH WARRANT

A search warrant must be executed as soon as reasonably possible after its issuance, and in any case may not be validly executed more than 7 days after its issuance. The executing officer must file his or her return with the court named in the warrant within 7 days after the warrant is issued. G.L. c. 2276 section 3A

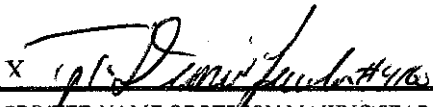
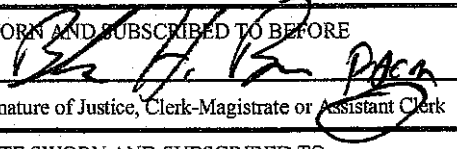
The search warrant was issued on March 9, 2023 2023, and I have executed it as follows;

The following is an inventory of the property taken pursuant to this search warrant:

1. One (1) tablet with a blue case with a visible model number of K72LL4 submitted for forensic extraction.

This inventory was made in the presence of: Sergeant Timothy Chiappini

I swear that this inventory is a true and detailed account of all the property taken
by me on this search warrant

SIGNATURE OF PERSON MAKING SEARCH X 	DATE AND TIME OF SEARCH 03/15/23 at 1052 Hrs	SWORN AND SUBSCRIBED TO BEFORE X  Signature of Justice, Clerk-Magistrate or Assistant Clerk
PRINTED NAME OF PERSON MAKING SEARCH Daniel Lawlor	TITLE OF PERSON MAKING SEARCH Trooper	DATE SWORN AND SUBSCRIBED TO 3-16-23

APPLICATION FOR SEARCH WARRANT G.L. c. 276 sections 1-7	TRIAL COURT OF MASSACHUSETTS DISTRICT COURT DEPARTMENT Plymouth Superior
Name of Applicant: Daniel Lawlor	SEARCH WARRANT DOCKET NUMBER 2359 SW 52
Position of Applicant: Trooper	

I, the undersigned **APPLICANT**, being duly sworn, depose and say that:

1. I have the following information based upon the attached affidavit(s), consisting of a total of 23 pages, which is (are) incorporated herein by reference.

2. Based upon this information, there is **PROBABLE CAUSE** to believe that the property described below:

has been stolen, embezzled, or obtained by false pretenses

is intended for use or has been used as the means of committing a crime

has been concealed to prevent a crime from being discovered

is unlawfully possessed

☒ is evidence of a crime or is evidence of criminal activity

other (specify) Murder

3. I am seeking the issuance of a warrant to search the following property (describe the property to be searched as particularly as possible)

(1) tablet with a blue case with a visible model number of K72LL4. This tablet with a blue case was located on the kitchen counter near the sink at the residence of 47 Summer Street Duxbury, Massachusetts, as a result of a search warrant, which was executed on Wednesday January 25, 2023.

4. Based upon this information, there is probable cause to believe that the property may be found (check as many as may apply)

☒ At (identify the exact location or description of the place(s) to be searched):

 See Attachment A

☒ On the person or in the possession of (identify any specific person(s) to be searched):
 Massachusetts State Police

☐ On any person present who may be found to have such property in his or her possession or under his or her control or to whom such property may have been delivered

THEREFORE, I respectfully request that the court issue a Warrant and order seizure, authorizing the search of the above described place(s) and person(s), if any, to be searched, and directing that such property or evidence or any part thereof, if found, be seized and brought before the court, together with such other and further relief that the court may deem proper

I ☐ Have previously submitted the same application

I ☒ Have not previously submitted the same application

Printed Name of Applicant Trooper Daniel Lawlor	Signed Under Penalties of Perjury X <i>Daniel Lawlor</i> #4160
SWORN AND SUBSCRIBED TO BEFORE X <i>[Signature]</i> Signature of Justice, Clerk-Magistrate or Assistant Clerk	3-9-23 DATE

ATTACHMENT A

- a. Data evidencing the identity of the person(s) owning or possessing the tablet;
- b. Data evidencing communications between Lindsay Clancy and contacts and or "chat groups" regarding Lindsay Clancy's state of mind
- c. Data evidencing Lindsay Clancy's whereabouts on January 24, 2023, including but not limited to data evidencing Lindsay Clancy's locations during that time.
- d. Data evidencing communications with Lindsay Clancy and others known and unknown; which may have contained information regarding the murders, strangulations and the assault and battery's with a dangerous weapon of Cora Clancy (DOB: 12/24/2017), Dawson Clancy (DOB: 09/30/2019), and Callan Clancy (DOB: 05/26/2022), and the attempted suicide of Lindsay Clancy (DOB: 08/11/1990).
- e. Data evidencing any communications relative to the murders, strangulations and the assault and battery's with a dangerous weapon of Cora Clancy (DOB: 12/24/2017), Dawson Clancy (DOB: 09/30/2019), and Callan Clancy (DOB: 05/26/2022), and the attempted suicide of Lindsay Clancy (DOB: 08/11/1990).
- f. Any and all data relative to or related to the murders, strangulations and the assault and battery's with a dangerous weapon of Cora Clancy (DOB: 12/24/2017), Dawson Clancy (DOB: 09/30/2019), and Callan Clancy (DOB: 05/26/2022), and the attempted suicide of Lindsay Clancy (DOB: 08/11/1990) from 05/26/2022 until present.
- g. Any and all data relative to or related to the murders, strangulations and the assault and battery's with a dangerous weapon of Cora, Dawson Clancy and Callan Clancy, and the attempted suicide of Lindsay Clancy from 05/26/2022 until present. This data would include all communications as well as information such as phone location(s), videos, photos, notes, internet searches or social media that will demonstrate that Lindsay Clancy planned her attempted suicide or the murders of Cora Clancy and Dawson Clancy and the strangulation of Callan Clancy. This information would also comprise premeditation of the murder against Lindsay Clancy as consciousness of guilt.

Commonwealth of Massachusetts

PLYMOUTH, SS
BROCKTON DIVISION

7369 SW 32
TRIAL COURT
DISTRICT COURT

Affidavit
In Support of Application for
Search Warrant for one (1) Tablet with a blue case located in the residence of
47 Summer Street Duxbury, Massachusetts

(M.G.L., Ch. 276, ss. 1 to 7; St. 1964, C. 557)

Thursday March 9, 2023

1. I, Daniel R. Lawlor (#4160), being duly sworn, depose and say:
2. I am a Trooper with the Massachusetts State Police and have so been employed since my graduation in January of 2018 from the State Police Academy in New Braintree. I have been assigned to the Plymouth County District Attorney's Office, State Police Detective Unit, since March of 2021. Within this unit my primary investigations include homicides, motor vehicle homicides, and unattended deaths. I have conducted and assisted with numerous investigations into various violent crimes including serious physical assaults. I have assisted as an investigator in seventeen homicides. I have been assigned as a case officer in three homicides. I have received training from the Massachusetts State Police, which includes, but is not limited to, the investigation of homicides, suicides, overdose deaths, unattended deaths, narcotics violations, domestic violence, armed and unarmed robbery, breaking and entering, larceny investigations, and motor vehicle crash investigations. I have been involved in the arrests and investigations of numerous criminal offenses. I have had the opportunity to be trained by more senior investigators.
3. Prior to my assignment with the Division of Investigative Services, I was assigned to the Division of Field Services, where I worked patrol out of the Foxboro, Charlton, and Milton barracks. Prior to my tenure as a State Trooper, I worked as an Emergency Management Specialist with the Federal Emergency Management Agency, where I was assigned to the Recovery Division in Region 1 New England. I hold a Bachelor's Degree in Criminal Justice from Westfield State

University and a Master's Degree in Healthcare Emergency Management from the Boston University School of Medicine.

4. Based on the information hereinafter related as a result of my own investigative efforts and those of the other investigators involved in this investigation, I believe that probable cause exists that Cora Clancy (Date of Birth: 12/24/2017), Dawson Clancy (Date of Birth: 09/30/2019), and Callan Clancy (Date of Birth: 05/26/2022) were the victims of the crimes of Murder, a violation of Massachusetts General Law Chapter 265 (2 Counts), Section 1, Strangulation, a violation of Massachusetts General Law Chapter 265 Chapter 15D (3 Counts), and Assault and Battery with a Dangerous Weapon, a violation of Massachusetts General Law Chapter 265, Section 15A (3 Counts) occurred on January 24, 2023, at 47 Summer Street in the Town of Duxbury, and evidence of the crime will be located within one (1) tablet with a blue case with a visible model number of K72LL4. This tablet with a blue case was located on the kitchen counter near the sink at the residence of 47 Summer Street Duxbury, Massachusetts, as a result of a search warrant, which was executed on Wednesday January 25, 2023. The evidence sought is any and all data relative to or related to murder, strangulation and assault and battery with a dangerous weapon of Cora Clancy, Dawson Clancy, and Callan Clancy, as well as information that may lead to Lindsay Clancy's state of mind in the form of premeditation leading up to and during the homicides in the form of internet searches, websites, internet chat groups, "apps" in addition to "chat group applications" such as Facebook, Snapchat, Instagram, Kick, Discord among others, as well as text messages or notes. This evidence would be data to include all communications as well as information such as phone location(s), videos, photos, notes, or social media that will demonstrate that Lindsay Clancy planned her attempted suicide, or the murders of Cora Clancy, Dawson Clancy, and Callan Clancy. This information would also comprise premeditation of the murder against Lindsay Clancy as consciousness of guilt.

5. This affidavit is being submitted for the limited purpose of establishing probable cause to conduct a forensic search of (1) tablet with a purple case with a visible model number of K72LL4. This tablet with a purple case was located on the kitchen counter near the sink at the residence of 47 Summer Street Duxbury, Massachusetts, as a result of a search warrant, which was executed on Wednesday January 25, 2023. I have not included each and every fact known to me concerning

this investigation. The foregoing facts are based on my personal participation in this investigation, as well as other law enforcement personnel participation in this investigation. This includes, but is not limited to, first-hand observations, interviews with participants in the events set forth in this Statement of Probable Cause, as well as conversations with other law enforcement personnel. The following facts establish probable cause for my request to the court for the issuance of a search warrant authorizing the forensic search of (1) tablet with a blue case with a visible model number of K72LL4. This tablet with a blue case was located on the kitchen counter near the sink at the residence of 47 Summer Street Duxbury, Massachusetts, as a result of a search warrant, which was executed on Wednesday January 25, 2023.

****The following is a summation of events and is not meant to include every possible fact known to investigators at this time. The basis that probable cause exists justifying this search warrant is as follows. ****

Investigation History

6. On Tuesday, January 24, 2023, at approximately 1811 hours, Duxbury police dispatch radioed all cruisers to respond to 47 Summer Street in the Town of Duxbury for an attempted suicide where the wife (who was positively identified as Lindsay Clancy (DOB: 08/11/1990)) had cut her wrists and neck and jumped out the window from the second floor. Duxbury Police responded to 47 Summer Street and located Ms. Clancy on the ground on the left side of the house. Located with Ms. Clancy was her husband and the 911 caller, Patrick Clancy (DOB:). As Duxbury Police officers were assessing Ms. Clancy, Mr. Clancy entered the home to check on his children. Duxbury police dispatch radioed to officers that the husband, Mr. Clancy was in the basement and something was wrong because his children would not wake up.

7. Duxbury Officers then heard extremely loud yelling and entered the home responding to the basement. In the basement, Duxbury Police officers located Mr. Clancy and the families three children, a five-year-old, three-year-old and a eight month old infant. The three children who were positively identified as Cora Clancy (DOB: 12/24/2017), Dawson Clancy (DOB: 09/30/2019), and Callan Clancy (DOB: 05/26/2022) were all located in different areas of the basement on the floor,

not breathing and unresponsive. All three children were transported by EMS to Beth Israel Plymouth Hospital where Cora Clancy (DOB: 12/24/2017) and Dawson Clancy (DOB: 09/30/2019) were both pronounced deceased.

8. Ms. Clancy was transported by EMS to South Shore Hospital in Weymouth. Callan Clancy (DOB: 05/26/2022) was med flighted to Children's Hospital in Boston. Duxbury Police then secured the residence of 47 Summer Street.

9. On Tuesday, January 24, 2023, at approximately 1929 hours, Trooper Rabbitt arrived at the Emergency Department of Beth Israel Deaconess Hospital – Plymouth (BID Plymouth). Trooper Rabbitt was met by Duxbury Police Department Officer Joseph Pollini. Cora Clancy was located in "Exam Room 3" and Dawson Clancy was located in "Trauma 1". Callan Clancy was located in "Trauma 2", however he was med-flighted to Boston Children's Hospital shortly after Trooper Rabbitt's arrival.

10. On Tuesday, January 24, 2023, at approximately 1948 hours, Trooper Rabbitt spoke with Emergency Department Doctor Mark Tenerowicz. Doctor Tenerowicz stated that he tended to Dawson Clancy upon his arrival at the emergency department, and upon arrival Dawson Clancy was in Cardiac Arrest. Doctor Tenerowicz stated that he had been told that Dawson Clancy had had an exercise band tied around his neck prior to being transported to BID Plymouth. Doctor Tenerowicz stated that Dawson Clancy had signs of strangulation, particularly Petechiae on the side of his face. Doctor Tenerowicz stated that Dawson Clancy had a bruise on his right knee and an old bruise on his right shin. Doctor Tenerowicz declared Dawson Clancy dead at approximately 1928 hours, the same date.

11. On Tuesday, January 24, 2023, at approximately 2002 hours, Trooper Rabbitt and Trooper Ashley Faiella of the Massachusetts State Police Crime Scene Services Section (CSSS) observed Cora Clancy in "Emergency Department Room 3". Cora Clancy was located on a hospital bed. Cora Clancy was covered in a white blanket and had medical devices protruding from her mouth and left ankle. Cora Clancy also had Automated External Defibrillator (AED) pads on her chest and a neck collar around her neck. Cora Clancy also had gray and orange pajamas partially on her

body, which had been partially cut off. Cora Clancy also had what appeared to be a bruise to the inside of the right bicep. Cora Clancy's hands were bagged by Trooper Faiella. Cora Clancy was digitally photographed by Trooper Faiella. Cora Clancy was later moved to the BID Plymouth morgue to be picked up by members of the Office of the Chief Medical Examiner (OCME) for a post-mortem examination.

12. On Tuesday, January 24, 2023, at approximately 2010 hours, Trooper Rabbitt spoke with Doctor Benjamin Kauffman. Doctor Kauffman tended to Callan Clancy upon his arrival at BID Plymouth. Doctor Kauffman stated that he noted no specific injuries besides Callan Clancy being in cardiac arrest and he was in critical condition prior to being med-flighted.

13. On Tuesday, January 24, 2023, at approximately 2025 hours, Trooper Rabbitt spoke with Doctor Michael Snyder. Doctor Michael Snyder tended to Cora Clancy upon her arrival at BID Plymouth. Doctor Snyder stated that Cora Clancy was in cardiac arrest upon arrival. Doctor Snyder stated that Cora Clancy had ecchymosis (bruising/popped blood vessels) around her head, eyes and neck. Doctor Snyder stated that Cora Clancy had bruising to her chest, that he stated most likely due to medical staff performing Cardiopulmonary Resuscitation (CPR) on her. Doctor Snyder stated that he pronounced Cora Clancy deceased at 1928 hours.

14. On Tuesday, January 24, 2023, at approximately 2031 hours, Lieutenant Lance Mello (CSSS), Trooper Rabbitt and Trooper Faiella observed Dawson Clancy in "Trauma 1". Dawson Clancy was located on a hospital bed. Dawson Clancy was located beneath a white blanket with a green hospital Johnny draped across his midsection. Dawson Clancy had medical devices on his chest, leg, AED pads on his chest and back and tubes protruding from his mouth. Dawson Clancy's hands were bagged by Lieutenant Mello and Trooper Faiella. Dawson Clancy was digitally photographed by Trooper Faiella. Dawson Clancy was later moved to the BID Plymouth morgue to be picked up by members of the OCME for a post-mortem examination.

15. On Tuesday, January 24, 2023, at approximately 2005 hours, Trooper Joshua McKelligan of the Plymouth County State Police Detective Unit, interviewed Duxbury Police Officer Brian Josephine at the Duxbury Police Station. Officer Josephine stated he works as a school resource

officer during the day and was on an overtime shift from 1600 until 2000 hours. Officer Josephine stated at approximately 1811 hours, he received a radio dispatch stating all cruisers respond to 47 Summer Street for a female that possibly attempted suicide and had lacerations to her wrists and neck and jumped from a second-floor window. Officer Josephine stated he arrived at the front of the house at the same time as Duxbury Officer Hall. Officer Josephine stated when he arrived, he noticed two vehicles in the driveway before he went to the right of the home and Officer Hall went to the left trying to go to the rear of the home. Officer Josephine stated Officer Hall called him to the left of the home and when he got there, he located Ms. Clancy on her back with blood in her mouth. Officer Josephine stated as he was going to the left side of the home, Mr. Clancy was on the left side of the home and walked past him and entered the home. Officer Josephine stated as he was assessing Ms. Clancy, Duxbury Police Dispatch radioed something about the home's basement (Officer Josephine was unsure of the transmission) before he heard extremely loud screaming coming from the house.

16. Officer Josephine stated he entered the home through the rear sliding door which was already open. Officer Josephine stated he entered into the kitchen then took a left to get to the staircase to the basement. Officer Josephine stated Mr. Clancy was still screaming. Officer Josephine stated he went down the basement stairs and turned right. Officer Josephine stated the basement was divided into a left side and right side. Officer Josephine stated Mr. Clancy came out of the far room and stated "she killed the kids". Officer Josephine stated he entered the rear room and believed he observed the two-year-old laying on his back unresponsive and was blue and purple in his face. Officer Josephine stated he believed he saw bruising on the child's neck. Officer Josephine stated there was a blue resistance band next to the child's head. Officer Josephine stated he grabbed the child and ran him up the stairs and out the front door into an arriving ambulance.

17. Officer Josephine stated he then returned to the basement and turned left this time. Officer Josephine stated he observed the families two other children on the ground unresponsive both having life saving measures performed by Duxbury EMS. Officer Josephine stated the rooms to the right in the basement appeared to be a weight room style room and an office and the area to the left in the basement appeared to be a living room area with couches. Officer Josephine was unsure of the layout of the basement because he was focused on the children.

18. On Tuesday, January 24, 2023, at approximately 2023 hours, Trooper McKelligan interviewed Duxbury Police Officer Stephen Hall at the Duxbury Police Station. Officer Hall stated he was working his scheduled shift from 1600 to 0000 hours. Officer Hall stated he received a radio transmission from Duxbury Police dispatch stating that stating all cruisers respond to 47 Summer Street for a female that possibly attempted suicide and had lacerations to her wrists and neck and also jumped from a second-floor window. Officer Hall stated he arrived at 47 Summer Street at the same time as Officer Josephine. Officer Hall stated when he was approaching the house he heard someone say, "over here, over here". Officer Hall stated he ran to the left side of the house and saw Mr. Clancy standing by Ms. Clancy who was laying on the ground. Officer Hall stated Ms. Clancy was laying on her back with her head towards the house and had lacerations to her wrists and neck. Officer Hall stated the lacerations were not currently bleeding. Officer Hall stated Ms. Clancy was breathing but was semi-conscious. Officer Hall stated Mr. Clancy then ran into the house. Officer Hall stated he heard Duxbury dispatch radio something about Mr. Clancy stating there was something wrong in the basement and that they won't wake up. Officer Hall stated he then heard loud screaming coming from the house. Officer Hall stated he entered the home through the rear door and entered the kitchen. Officer Hall stated he took his second left and proceeded down the basement stairs. Officer Hall stated he turned right and saw the husband coming out of the rear room stating, "oh my God, oh my God" and was breathing heavily. Officer Hall stated he went into the back room and located what he believed was the oldest child. Officer Hall stated he ran up the stairs with Officer Josephine and transported the child to an arriving ambulance.

19. Officer Hall stated in the basement to the left was couches. Officer Hall stated when he went back into the house and reentered the basement, EMS was performing life saving measures on the families two other children. Officer Hall stated all the children were blue in the face. Officer Hall stated the first child to the right of the basement had no shirt on and their face and chest were blue. Officer Hall stated when he exited the house the last time, he observed the window on the second floor on the rear left of the home. The window frame had blood on it when looking from the ground.

20. On Tuesday, January 24, 2023, at approximately 2040 hours, Trooper McKelligan interviewed Duxbury Police Officer Vincent Cahill at the Duxbury Police Station. Officer Cahill stated he was working his scheduled shift of 1600-0000 hours. Officer Cahill stated he was dispatched to 47 Summer Street for an attempted suicide. Officer Cahill stated when he arrived on scene other Duxbury Police Officers and EMS personal were on scene. Officer Cahill stated he opened the front door of the home for EMS to access the front of the home. Officer Cahill stated he then went downstairs to the basement where he observed Mr. Clancy pacing back and forth. Officer Cahill stated he then went to the left side of the basement and observed the female child on the ground. Officer Cahill stated he observed blood on the child's hand and blood on her face and nose. Officer Cahill stated he then realized the youngest child, the infant was lying behind him on the ground unresponsive. Officer Cahill stated he observed indents and trauma to the infant's neck. Officer Cahill stated there was a blue exercise resistance band on the ground next to the child. Officer Cahill stated he then assisted in performing life saving measures. Officer Cahill stated he then was able to talk to Mr. Clancy who stated he had gone out to pick up food and make another stop before returning home. Officer Cahill stated Mr. Clancy returned home and realized the home was quiet prior to locating Ms. Clancy.

21. On Tuesday, January 24, 2023, at approximately 2040 hours, Lieutenant John Santos and Trooper Joseph Rabbitt conducted an interview of Patrick Clancy (DOB: (47 Summer Street, Duxbury, Phone:) in the family room of Beth Israel Deaconess Hospital – Plymouth. Patrick Clancy was identified as the spouse of Lindsay Clancy, and father of Cora Clancy, Dawson Clancy, and Callan Clancy. The interview was audio recorded and the following is meant to be a summary of the interview and not to be taken as verbatim.

22. Patrick Clancy stated that he has been married to his wife, Lindsay Clancy, for six years and they have three children together. Patrick Clancy stated that at the end of September of 2022, Lindsay Clancy stated that she was beginning to get anxious prior to her return to work at Massachusetts General Hospital as a labor and delivery nurse. Patrick Clancy stated that Lindsay Clancy went to a Psychiatrist, who he identified as Jennifer Tufts, and was prescribed Zoloft. Patrick Clancy stated that Lindsay Clancy also saw another Psychiatrist who he identified as Rebecca Jollotta. Patrick Clancy stated that Lindsay Clancy was also prescribed multiple other

medications, including Valium, Trazadone, Ativan, Klonopin, Prozac, and Seroquel. Patrick Clancy stated that Lindsay Clancy would take as many as four medications a day, however she would take them as prescribed.

23. Patrick Clancy stated that Lindsay Clancy called the restaurant "ThreeV" in Plymouth, at approximately 1715 hours, the same date, for take-out food and Patrick Clancy went to pick up the food. Patrick Clancy stated that he also stopped at the CVS in Kingston, near the Duxbury line, and purchased laxative for his daughter, Cora Clancy.

24. Patrick Clancy stated that he arrived back home at his residence (47 Summer Street, Duxbury) and he noticed the whole house was quiet. Patrick Clancy stated that he went upstairs to his bedroom and his bedroom door was locked. Patrick Clancy stated that after he got into his bedroom, he saw blood and the window open so he then ran downstairs and outside and located Lindsay Clancy on the ground. Patrick Clancy stated that when he located Lindsay Clancy on the ground outside it appeared that she had slit her wrists and possibly her neck. Patrick Clancy stated that he then called "911".

25. Patrick Clancy stated that the police then arrived at the residence. He stated he went to the basement where he located Cora Clancy and Callan Clancy in the main living room and Dawson Clancy in his office. Patrick Clancy stated that all three children had "workout bands" tied around their necks.

26. Patrick Clancy stated that he was home all day, with the exception of when he left the residence to go to "ThreeV" and "CVS".

27. Patrick Clancy stated that Lindsay Clancy stated that she had been having suicidal thoughts as well as thoughts of hurting the children. He clarified that she had communicated that she was feeling this way at the end of December. Patrick Clancy stated that Lindsay Clancy had reached out to her Psychiatrist, Jennifer Tufts. Patrick Clancy stated that Lindsay Clancy had self-admitted herself to McClean Hospital from January 1, 2023 through January 5, 2023. Patrick Clancy stated that he and Lindsay Clancy had an "amazing marriage" and "Got along great". He

further stated that they tell each other that they love each other ten times a day. At the end of the interview, Mr. Clancy consented to have his face, clothing and hands digitally photographed by Trooper Ashley Faiella.

28. Trooper Andrew Chiachio was able to review Apple maps and calculate the travel times for Mr. Clancy's travel. Trooper Chiachio stated it takes approximately three minutes to travel from 47 Summer Street to CVS. Trooper Chiachio stated it takes approximately eight minutes to travel from CVS to ThreeV. Trooper Chiachio stated it takes approximately nine minutes to travel from ThreeV to 47 Summer street.

29. On Tuesday, January 24, 2023, at approximately 2109 hours, Duxbury Police Lieutenant Lewis Chubb and Trooper Andrew Chiachio visited the ThreeV located at 10 Cordage Park Circle, Suite 253, Plymouth, Massachusetts to retrieve video. During the course of the investigation, investigators learned Patrick Clancy (Date of Birth: () entered ThreeV to pick up food after leaving his house the evening of January 24, 2023.

30. Lieutenant Chubb and Trooper Chiachio spoke with Michael Viscariello (Phone: () who is the manager of ThreeV. Mr. Viscariello provided us with access to the surveillance video system. We confirmed that the time and date on the video was accurate.

31. The video shows Patrick Clancy enter ThreeV through the front door at 17:54:14 hours. Patrick Clancy glances at the takeout table then waits in line behind a couple for brief moment. While waiting he looks at his cellular telephone. After the couple leaves, he approaches the hostess desk to pick up his order. He pays for his order at 17:55:01. Mr. Viscariello informed us the hostess was Saria Sweeney (Phone: ()). Patrick Clancy paid with an American Express card. Mr. Viscariello printed a copy of the receipt for us. The receipt showed the order for two items was placed at 17:10:00 hours.

32. Mr. Viscariello was able to show us the video but stated he would need to contact an outside vendor to obtain a copy of the video. Mr. Viscariello said he would have the video emailed to Trooper Chiachio.

33. On Tuesday, January 24, 2023, at approximately 2140 hours, Sergeant Mark Farioli and Trooper Andrew Chiachio visited the CVS Pharmacy located at 189 Summer Street, Kingston, Massachusetts to retrieve video. During the investigation, investigators learned Patrick Clancy entered this CVS after leaving his house the evening of January 24, 2023.

34. Sergeant Farioli and Trooper Chiachio spoke with Angela Krause (Phone:) who is the manager of this CVS location. Ms. Krause provided us with access to the surveillance video system. They confirmed that the time and date on the video was accurate.

35. The video shows Patrick Clancy enter the CVS through the front door at 17:32:32 hours and walk to aisle 20. Ms. Krause informed us aisle 20 is where they keep children's medication. Patrick Clancy spends only a few minutes in the children's aisle before exiting the aisle and walking back towards the registers. As he does this, just prior to exiting the camera frame, Patrick Clancy appears to be utilizing his cellular phone. Patrick Clancy arrives at the register at 17:36:12 hours, no longer utilizing his phone. Patrick Clancy exits the store through the front door at 17:37:08 and turns right. Ms. Krause informed us there were no exterior cameras showing this side of the building. Ms. Krause mentioned to us that a female had called the store asking if they had children's laxative prior to Patrick Clancy entering the store.

36. The surveillance video was downloaded to a USB Flash Drive and will be entered into the Plymouth County State Police Detective Units Evidence room.

37. On Tuesday, January 24, 2023, at approximately 2250 hours, while at Duxbury Police Department, Trooper Cory Melo conducted a recorded interview of Kyle Carney (DOB: , Phone# :) with Duxbury Police Detective Maffeo. Mr. Carney stated that he met Pat Clancy in college and they have been friends for approximately 10 years. He states that they speak just about every day and he actually spoke with Pat earlier this morning in a group text. Mr. Carney stated that the group text was with other friends and primarily discussed work. Mr. Carney informed me that Pat Clancy currently works for Microsoft while he works in the

financial sector. Mr. Carney stated that when he spoke to Pat earlier in the day, he seemed to be his normal self.

38. Mr. Carney informed me that on Sunday, January 22, 2023, Pat Clancy along with Lindsay and two of the older children had visited their house for dinner. While there, Lindsay seemed fairly normal, mostly quiet while on her phone and keeping to herself. He was actually surprised she was there due to Pat's statements about her health and he didn't know she was coming that night. He stated that overall everything seemed perfectly normal and this was the first time they had seen Lindsay in a couple months. When asked why they had not seen Lindsay for such an extended period of time, Mr. Carney stated that Lindsay was having medical issues. Trooper Melo then asked him to expand on these medical issues and he stated that Pat told him that Lindsay was about to go back to work and was having anxiety. She was prescribed medications, which were in Pat's opinion not working. Pat went on to tell him that Lindsay was prescribed more medication and thought she was now addicted to Benzodiazepines. Pat also told Mr. Carney that Lindsay was having issues with her medication and she was mostly anxious and not depressed. Pat felt as if Lindsay was not overly anxious and the anxiety level was normal and not severe. According to Pat, Lindsay had joked about talking to a therapist about her anxiety.

39. Mr. Carney stated that Pat mentioned Lindsay was suffering from withdrawals from the Benzodiazepines approximately a month and a half ago and that is when he began to open up to both Mr. Carney and his wife Sarah Carney (DOB:). Pat told Mr. Carney that he was really concerned about the withdrawals and said that Lindsay had the worst side effects possible. Lindsay was also prescribed more medication for sleeping. When asked if Lindsay had any close friends in the area, Mr. Carney stated that besides local mother groups, she did not have many friends. Due to this, Mr. Carney informed me that he along with his wife were going to start to engage one on one with Lindsay in the near future. Pat also stated to Mr. Carney that Lindsay's family had been in Duxbury this past weekend to support her.

40. Mr. Carney stated that he along with his wife went to college with Pat and they send their children to the same daycare. It was during one of these daycare drop-offs that Pat looked as though he was having a rough morning and he opened up to Mrs. Carney. Pat had communication

via text messages with Mrs. Carney on January 5th, 2023 in regards to Lindsay and the treatment and medication she was receiving. Mr. Carney stated that Pat felt as if he needed to get more involved with her treatment due to the fact that Lindsay was going by herself to a psychiatrist for a while and he felt that she was prescribed too many medications. Mr. Carney informed me that Pat never voiced concern of Lindsay hurting herself. The interview was terminated at this time.

41. On Wednesday, January 25, 2023, at approximately 0300 hours, Trooper McKelligan sought and received a search warrant for 47 Summer Street in Duxbury. The warrant was issued by Plymouth District Court Clerk Magistrate Adam Baler. At approximately 0400 hours, the search warrant was executed at 47 Summer Street in Duxbury. Located on the kitchen counter near the sink was one (1) tablet with a blue case with a visible model number of K72LL4. Investigators are aware that Ms. Clancy and Mr. Clancy both had access to this tablet prior to the three murders. Investigators are also aware that Ms. Clancy previously used her cellular telephone to conducted internet searches, utilize notes, and social media applications. Located, on the nightstand, directly below the open window was a large blood covered kitchen knife. This knife was secured by Massachusetts State Police Crime Scene Services. Located in the basement was a brown notebook. Located in a kitchen cabinet was as separate multi-colored notebook. In both notebooks, Ms. Clancy listed medications she was taking and at times suicidal expressions and thoughts. In these notebooks, Ms. Clancy also expresses that she confides in friends, one named "Sue" but does not list last names in the notebooks. Investigators are also aware that Ms. Clancy used her cellular telephone and her journal to document her mental state and her feelings about her children, in addition to keeping track of her medications, and researching ways to kill, which means that is reasonable to conclude that Ms. Clancy would have used all formats and tools available to her, including a tablet.

42. On Wednesday January 25, 2023, at approximately 0900 hours, Trooper Williams Frias attended the autopsies of Cora Clancy (DOB: 12/24/2017) and Dawson Clancy (DOB: 09/30/2019) the Office of the Chief Medical Examiner's Office located in the Town of Sandwich. Trooper Frias stated Doctor Barbara Vidal was the Medical Examiner and Trooper Beth Garfield from the Massachusetts State Police Crime Scene Services. During both autopsies, Doctor Vidal observed the following trauma to Cora Clancy and Dawson Clancy:

- Small bruising on both sides of both legs
- Small bruising back of right leg. (not present on Cora Clancy)
- Small bruising on right arm
- Ligature around the neck
- Redness of the head
- Petechiae in the face
- Petechiae inside of eye lids
- Petechiae inside upper and lower lip
- Heavy lungs
- Skeleton X-rays were negative for trauma
- No evidence of blunt force trauma, brain bleeds, and/or skull fractures
- No soft tissue damage in back
- Neck muscles are negative for hemorrhaging
- Hyoid intact
- Eyes did have hemorrhaging + optic nerve

The cause and manner regarding the deaths of both Cora Clancy and Dawson Clancy are currently pending.

43. On Wednesday January 25, 2023, at approximately 1545 hours Trooper MacDonald sought and received an arrest warrant Lindsay Clancy for eight counts of the following charges: Murder, Strangulation, Assault and Battery Dangerous Weapon. The Criminal Complaint was issued by Plymouth County District Clerk Adam Baler. The affidavit and criminal complaint paperwork have been digitally loaded into the ACISS Case File.

44. On Wednesday January 25, 2023, at approximately 1525 hours Trooper Jerome MacDonald sought and received a search warrant from Plymouth County Superior Court Judge Brian Davis. The search warrant was for Trace Evidence of Lindsay Clancy. Signed Affidavit and Signed Search Warrant for Trace Evidence Application have been loaded to the ACISS Case File. On Wednesday January 25, 2023, at approximately 1732 hours Trooper MacDonald arrived at Brigham and Women's Hospital in the City of Boston to execute the Search Warrant. Present for the execution of the search warrant was Massachusetts State Police Chemist Maureen Hartnett, Massachusetts State Police Chemist Sarah Bourisk and Trooper Matthew Foley of the Massachusetts State Police Crime Scene Services Section. Trooper MacDonald, Trooper Foley and Chemist Hartnett were escorted to Tower Floor 8, Room 8C58 by Security guard Noah Evangelista. Upon arrival at the Room of Lindsay Clancy, Trooper MacDonald met with Officer

Cam Daley of the Duxbury Police Department. Trooper MacDonald briefed Registered Nurse Meg Collins and Lieutenant Luis Cherubino of the Brigham and Women's Hospital Security Staff, and Trooper MacDonald provided a copy of the search warrant for the Hospital Staff Records. The search warrant execution began at approximately 1821 hours.

45. Trooper Foley began to digitally document Lindsay Clancy's injuries. During the execution of the warrant, Registered Nurse Meg Collins and Registered Nurse Rachelle Amedee assisted in pointing out the injuries and removing bandages for Trooper Foley to successfully document them by use of digital photography. During this time, Trooper MacDonald observed the following injuries to the body of Lindsay Clancy:

1. Right Wrist: Multiple lacerations from a sharp object.
2. Right Hand: Possible scrapes on backside of hand around the knuckles.
3. Left Wrist: Multiple lacerations from a sharp object.
4. Left Hand: Possible scrapes on backside of hand around the knuckles.
5. Left Bicep: 2 bruises.
6. The Neck: Multiple lacerations to the left and right side of the neck deep cut on the right side of neck.
7. Left Leg: Possible light bruising to the thigh.
8. Right Leg: Possible light bruising to the thigh.

46. Trooper MacDonald was unable to observe any trauma to the back of Lindsay Clancy because of a spinal cord injury. Registered Nurse Rachelle Amedee advised Trooper MacDonald that she was the original Nurse for Lindsay Clancy when the patient arrived at Brigham and Women's Hospital. Nurse Rachelle Amedee stated that she did not witness any trauma to the back of the Ms. Clancy. Nurse Rachelle Amedee further explained that on January 25, 2023, at approximately 0330 hours, Lindsay Clancy became unresponsive and was worked on by hospital staff and was considered stable at approximately 0430 hours. Nurse Rachelle Amedee advised Trooper MacDonald that Lindsay Clancy was unconscious at the time and was unable to hear their conversations.

47. Once the digital documentation was complete Massachusetts State Police Chemist Maureen Hartnett conducted external swabs from the left-hand fingernails and the right-hand fingernails of Lindsay Clancy.

48. Nurse Meghan Collins provided Trooper MacDonald with a list of injuries which were documented by the hospital staff on Nursing Progress Notes, Summary of Injuries which has been Uploaded to the ACISS Case Report. Below is a summary of Lindsay Clancy Injuries:

1. C1 Burst Fracture
2. Bilateral non-displaced C4 Lamina Fractures
3. T5-6 comminuted tricolumnar fracture with 14 mm T5-6 anterolisthesis with multiple osseous fragments within the canal, which is largely obliterated.
4. T4 Spinous process fractures, malalignment of the R T5-7
5. LT6-8 TP Fractures, Malalignment of the R T5-7
6. L T7-8 Costovertebral junctions
7. Hemorrhage tracking into upper retroperitoneum from caudal posterior mediastinum and thoracic paraspinal soft tissues.
8. Acute mildly displaced mildly comminuted fx of spinous process T4.
9. Small b/i hemopneumothoraces.
10. Right first rib fracture.
11. Superficial laceration to the anterior neck and bilateral wrists with associated thyroid edema.

49. On Wednesday January 25, 2023, at approximately 1900 hours, the search warrant was completed and all Troopers secured from at Brigham and Women's Hospital in the City of Boston.

50. On Sunday, January 29 2023, Trooper Rabbitt attended the autopsy of Callan Clancy (Date of Birth: 5/26/22) at the Office of the Chief Medical Examiner (OCME) Boston, located at 720 Albany Street, Boston. The autopsy was conducted by Doctor Kimberly Springer with the assistance of OCME Technician Moss Glater. The autopsy was digitally photographed by Trooper

Matthew Foley of the Massachusetts State Police Crime Scene Services (CSSS). The autopsy was conducted at approximately 1102 hours, the same date.

51. Callan Clancy was observed in a white body bag on top of an autopsy table. Callan Clancy was dressed in a diaper and a gray and white blanket. Callan Clancy had medical devices and tubes attached to his mouth, nose, and legs. Callan Clancy had abrasions to both sides of his neck.

52. Doctor Springer noted abrasions to Callan Clancy's neck, and Petechia to "all over" his face. Doctor Springer stated that she did not find any hemorrhage to Callan Clancy's neck during the autopsy. Doctor Springer stated that she collected Callan Clancy's eyes and brain for further analysis by medical staff.

53. Doctor Springer stated that the final cause and manner of Callan Clancy was currently pending further analysis.

54. Based on my training and experience and that of other officers assigned to this investigation, I know that:

1. Tablets are widely used today and as such they contain much information about its user. With many tablets having the ability to send and receive calls, short message service (SMS, or text) messages, and multimedia messaging services (MMS), in addition to calendars, contact lists, and call history, cellular telephones contain hundreds of digital files that can be used to corroborate or discount the user's statements, and/or independently assist investigators including: establishing a timeline of the user before, during or following criminal activity, possibly identifying the user's motives and/or frame of mind for committing a crime.

2. Tablets today may be considered hand-held computers, as many models can be used to text, send and receive electronic mail (e-mail), and also to view Internet web pages and/or access social media accounts. Social media use web based and mobile technologies on smartphones and tablet computers to create highly interactive platforms through which

individuals, communities and organizations can share, co-create, discuss, and modify user-generated content or pre-made content posted online. Social media allows users to instantly share images, videos, and/or text with one or many other individuals.

3. Information typically contained on tablets that may be useful to investigators includes:

- a. Subscriber tablet number.
- b. The tablet's electronic serial number (ESN), international mobile equipment number, mobile equipment identifier, or other similar identification number.
- c. Tablet configuration information and settings.
- d. Call history (including incoming, outgoing, and missed calls).
- e. Contact list, address book, calendar, date book, and memo pad.
- f. SMS and MMS history (including incoming, outgoing, deleted, and draft messages).
- g. Voicemail (including saved, opened and unopened voicemails).
- h. E-mail messages (including saved, opened, unopened, draft, sent, and deleted e-mail messages).
- i. Instant messages (IMs) to include messages, chat logs, and "buddy" lists.
- j. Internet browser history (including bookmarks and favorites).
- k. Saved and deleted digital images and videos.
- l. Third party applications used and information contained within the databases of those applications. (including social media applications)

4. I have knowledge and experience that tablets may be used by perpetrators of violent crimes, for purposes other than lawful and normal communication. These tablets may be used to arrange and facilitate escape, to coordinate alibis, conceal evidence of a crime, photograph or record illegal activities or contraband, store contact information of accomplices, as well as document oral or text communications of conspiracy between knowing participants

55. Based on the information hereinafter related as a result of my own investigative efforts and those of the other investigators involved in this investigation, I believe that probable cause exists that Cora Clancy (Date of Birth: 12/24/2017), Dawson Clancy (Date of Birth: 09/30/2019), and Callan Clancy (Date of Birth: 05/26/2022) were the victims of the crimes of Murder, a violation of Massachusetts General Law Chapter 265 (2 Counts), Section 1, Strangulation, a violation of Massachusetts General Law Chapter 265 Chapter 15D (3 Counts), and Assault and Battery with a Dangerous Weapon, a violation of Massachusetts General Law Chapter 265, Section 15A (3 Counts), and evidence of the crime will be located within (1) tablet with a blue case with a visible model number of K72LL4. This tablet with a blue case was located on the kitchen counter near the sink at the residence of 47 Summer Street Duxbury, Massachusetts, as a result of a search warrant, which was executed on Wednesday January 25, 2023.

56. Based on the foregoing reliable information and upon my personal knowledge and belief, as well as the opinion of other investigators assisting in this investigation, I believe that there is probable cause to believe that evidence and information related to the crime of Murder, a violation of Massachusetts General Law Chapter 265 (2 Counts), Section 1, Strangulation, a violation of Massachusetts General Law Chapter 265 Chapter 15D (3 Counts), and Assault and Battery with a Dangerous Weapon, a violation of Massachusetts General Law Chapter 265, Section 15A (3 Counts) occurred on January 24, 2023 at 47 Summer Street in the Town of Duxbury, with the victims being Cora Clancy (Date of Birth: 12/24/2017), Dawson Clancy (Date of Birth: 09/30/2019), and Callan Clancy (Date of Birth: 05/26/2022) may be found within the digital components of within (1) tablet with a blue case with a visible model number of K72LL4. This tablet with a blue case was located on the kitchen counter near the sink at the residence of 47 Summer Street Duxbury, Massachusetts, as a result of a search warrant, which was executed on

Wednesday January 25, 2023. This tablet was seized on January 25, 2023, and is currently in evidence at the Plymouth County State Police Detective Unit.

Conclusion

57. As a result of the above investigation and the collective opinions of all investigators involved, I believe that probable cause is set forth above detailing that Cora Clancy (Date of Birth: 12/24/2017), Dawson Clancy (Date of Birth: 09/30/2019), and Callan Clancy (Date of Birth: 05/26/2022) were the victims of murder, strangulation and assault and battery with a dangerous weapon. Therefore, as stated above, I further believe that probable cause of the above stated Murder, a violation of Massachusetts General Law Chapter 265 (2 Counts), Section 1, Strangulation, a violation of Massachusetts General Law Chapter 265 Chapter 15D (3 Counts), and Assault and Battery with a Dangerous Weapon, a violation of Massachusetts General Law Chapter 265, Section 15A (3 Counts), along with the attempted suicide of Lindsay Clancy exists and may be found within digital components within (1) tablet with a blue case with a visible model number of K72LL4. This tablet with a blue case was located on the kitchen counter near the sink at the residence of 47 Summer Street Duxbury, Massachusetts, as a result of a search warrant, which was executed on Wednesday January 25, 2023.

58. Based on the foregoing reliable information and upon my personal knowledge and belief, as well as the opinion of other investigators assisting in this investigation, I believe that probable cause exists that evidence and information related to the murders, strangulations and the assault and battery's with a dangerous weapon of Cora Clancy (Date of Birth: 12/24/2017), Dawson Clancy (Date of Birth: 09/30/2019), and Callan Clancy (Date of Birth: 05/26/2022), and the attempted suicide of Lindsay Clancy (Date of Birth: 08/11/1990) which occurred on January 24, 2023, at 47 Summer Street in the Town of Duxbury, may be found within the digital components of (1) tablet with a purple case with a visible model number of K72LL4. This tablet with a purple case was located on the kitchen counter near the sink at the residence of 47 Summer Street Duxbury, Massachusetts, as a result of a search warrant, which was executed on Wednesday January 25, 2023. This tablet is currently in evidence at the Plymouth County State Police Detective Unit. This belief is based on the above investigation, including:

- A tablet with a blue case with a visible model number of K72LL4. This tablet with a blue case was located on the kitchen counter near the sink at the residence of 47 Summer Street Duxbury, Massachusetts, as a result of a search warrant, which was executed on Wednesday January 25, 2023.
- Lindsay Clancy uses notebooks which were discovered during the search warrant to log her expressions and thoughts and could possibly use a tablet for a more comprehensive log.
- Investigators could use this tablet believed to belong to Lindsay Clancy's in order to obtain her contact list and messages to identify Sue and other friends she confides in.
- It is known to me and other investigators that individuals will use their tablets to "google" or research means to commit murder or to commit suicide
- It is known to me and other investigators that individuals will use social media, texts, the notes or other applications to explain the crimes they have committed or will commit.
- It is known to me and other investigators that individuals will use social media, texts, the notes or other applications to leave a suicide note to family, friends or law enforcement.
- That individuals will use family sharing locations to see when family members are leaving or returning home.

59. Wherefore, I respectfully request that the court issue a search warrant authorizing the forensic examination of the above listed tablet: (1) tablet with a blue case with a visible model number of K72LL4. This tablet with a blue case was located on the kitchen counter near the sink at the residence of 47 Summer Street Duxbury, Massachusetts, as a result of a search warrant, which was executed on Wednesday January 25, 2023. The search of this tablet shall include a search for the following information typically contained on cellular phones such as: Subscriber telephone number, the cellular telephone's electronic serial number (ESN), international mobile equipment number, mobile equipment identifier, or other similar identification number, tablet configuration information and settings, call history (including incoming, outgoing, and missed calls), contact list, address book, calendar, date book, and memo pad, SMS and MMS history (including incoming, outgoing, deleted, and draft messages), voicemail (including saved, opened and unopened voicemails), E-mail messages (including saved, opened, unopened, draft, sent, and deleted e-mail messages), instant messages (IMs) to include messages, chat logs, internet browser

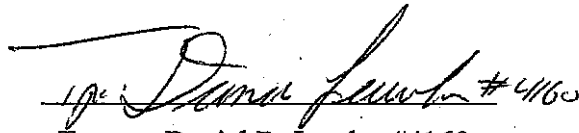
history (including bookmarks and favorites), saved and deleted digital images and movies, Applications or "Apps" present on the phone and any other data regarding the investigation into murder and strangulation.

60. The affiant also requests that the warrant authorize the affiant to utilize any electronic equipment necessary to view, recover and record the data contained within the tablet and search for the following:

ATTACHMENT A

- a. Data evidencing the identity of the person(s) owning or possessing the tablet;
- b. Data evidencing communications between Lindsay Clancy and contacts and or "chat groups" regarding Lindsay Clancy's state of mind
- c. Data evidencing Lindsay Clancy's whereabouts on January 24, 2023, including but not limited to data evidencing Lindsay Clancy's locations during that time.
- d. Data evidencing communications with Lindsay Clancy and others known and unknown; which may have contained information regarding the murders, strangulations and the assault and battery's with a dangerous weapon of Cora Clancy (DOB: 12/24/2017), Dawson Clancy (DOB: 09/30/2019), and Callan Clancy (DOB: 05/26/2022), and the attempted suicide of Lindsay Clancy (DOB: 08/11/1990).
- e. Data evidencing any communications relative to the murders, strangulations and the assault and battery's with a dangerous weapon of Cora Clancy (DOB: 12/24/2017), Dawson Clancy (DOB: 09/30/2019), and Callan Clancy (DOB: 05/26/2022), and the attempted suicide of Lindsay Clancy (DOB: 08/11/1990).
- f. Any and all data relative to or related to the murders, strangulations and the assault and battery's with a dangerous weapon of Cora Clancy (DOB: 12/24/2017), Dawson Clancy (DOB: 09/30/2019), and Callan Clancy (DOB: 05/26/2022), and the attempted suicide of Lindsay Clancy (DOB: 08/11/1990) from 05/26/2022 until present.
- g. Any and all data relative to or related to the murders, strangulations and the assault and battery's with a dangerous weapon of Cora, Dawson Clancy and Callan Clancy, and the attempted suicide of Lindsay Clancy from 05/26/2022 until present. This data would include all communications as well as information such as phone location(s), videos, photos, notes, internet searches or social media that will

demonstrate that Lindsay Clancy planned her attempted suicide or the murders of Cora Clancy and Dawson Clancy and the strangulation of Callan Clancy. This information would also comprise premeditation of the murder against Lindsay Clancy as consciousness of guilt.

A handwritten signature in cursive script, appearing to read "Trooper Daniel R. Lawlor #4160".

Trooper Daniel R. Lawlor #4160

MASSACHUSETTS STATE POLICE

Then personally appeared the above named Daniel R. Lawlor and made oath that the foregoing by him subscribed is true.

Before me,

A handwritten signature in cursive script, appearing to read "Honorable Judge/Clerk Magistrate".

Honorable Judge/Clerk Magistrate

COMMONWEALTH OF MASSACHUSETTS

PLYMOUTH, SS

PLYMOUTH DISTRICT COURT

DOCKET NO.:

2359 SW 82

IN THE MATTER OF THE SEARCH WARRANT FOR:
ONE (1) TABLET WITH A BLUE CASE WITH A VISIBLE MODEL NUMBER OF
K72LL4 FOUND IN 47 SUMMER STREET, DUXBURY, MA

COMMONWEALTH'S MOTION TO SEAL AND IMPOUND

Now comes the Commonwealth in the above-captioned matter and respectfully requests that this Honorable Court order the following materials be sealed and impounded until further order:

1. The pertinent application for the search warrant, and any attachments, exhibits and addenda;
2. The accompanying affidavit submitted in support of said application for the search warrant, and any attachments, exhibits and addenda;
3. The subsequently issued search warrant;
4. The return of the search warrant; and
5. All other related paperwork, including the present motion and corresponding affidavit.

The Court may exercise this power pursuant to Massachusetts General Law c. 220 s. 2 and Section VIII of the Trial Court Rules, Uniform Rules on Impoundment Procedure.

In support of its motion, the Commonwealth states that it is presently engaged in an active and ongoing homicide investigation, which began on January 24, 2023 in the Town of Duxbury. The above-referenced materials contain information as to what steps the police have taken, are presently undertaking, and may undertake in the future, to further this investigation. The Commonwealth is concerned that evidence may be

intentionally destroyed if potential suspects were to have access to this information. The Commonwealth is also rightfully concerned that parties involved attempt to intimidate witnesses identified in the affidavit. This may seriously impair or completely frustrate the ongoing investigation.

If public disclosure of the contents of these materials is to be made before the termination of the investigation, persons involved, their accomplices or sympathizers may cause evidence and persons sought by the warrants to be hidden or destroyed. Such activity by the targets of the investigation would interfere with, inhibit, frustrate or even defeat the Commonwealth's ability to uncover evidence and to located evidence or persons involved. The Commonwealth offers that it is in the interests of justice to impound these materials until the Commonwealth's investigation is completed.

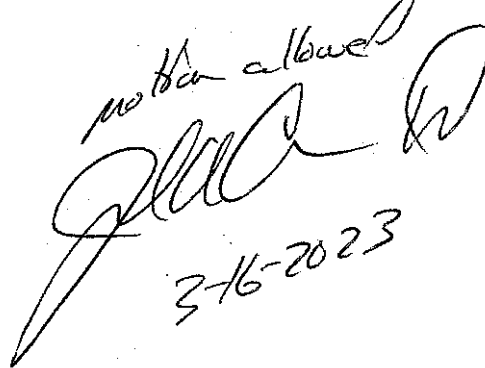
For these reasons, the Commonwealth respectfully requests that this Honorable Court seal and impound 1. The pertinent application for the search warrant, and any attachments, exhibits and addenda; 2. The accompanying affidavit submitted in support of said application for the search warrant, and any attachments, exhibits and addenda; 3. The subsequently issued searchwarrant;4. The return of the search warrant; and 5.. All other related paperwork, including the present motion and corresponding affidavit, and preclude any and all access to them or information dissemination about them until further order of this Court. See e.g., New England Internet Café, LLC v. Clerk of the Superior Court for Criminal Business in Suffolk County, 462 Mass. 76, 83 (2012) (publicity of judicial records is not absolute and may be restricted on a showing of "good cause.")

WHEREFORE, the Commonwealth respectfully requests that this motion be allowed.

FOR THE COMMONWEALTH
TIMOTHY J. CRUZ
District Attorney

BY: Jennifer Sprague
Jennifer Sprague
Assistant District Attorney
Plymouth District

DATE: March 15, 2023

motion allowed

3-16-2023

COMMONWEALTH OF MASSACHUSETTS

PLYMOUTH, SS

PLYMOUTH DISTRICT COURT
DOCKET NO.:

IN THE MATTER OF THE SEARCH WARRANT FOR:
ONE (1) TABLET WITH A BLUE CASE WITH A VISIBLE MODEL NUMBER OF
K72LL4 FOUND IN 47 SUMMER STREET, DUXBURY, MA

ORDER

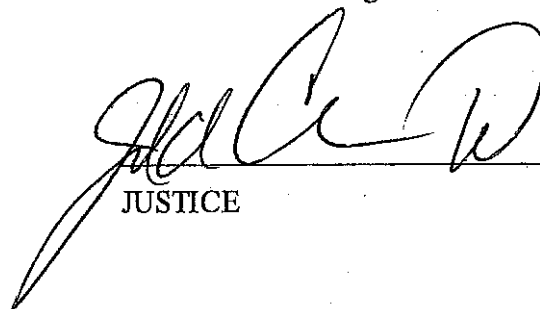
It is hereby ordered that the application for the search warrant, its attachments, exhibits and addenda; the accompanying affidavit submitted in support of said application for the search warrant, its attachments, exhibits and addenda; the search warrant and return, as well as all other related paperwork subject to impoundment, including Commonwealth's Motion to Impound and supporting affidavit, be impounded and sealed. This order is based upon a showing of good cause.

If public disclosure of the search warrant or any supporting documentation were to be made before the termination of the investigation, persons involved, their accomplices or sympathizers may cause evidence and persons sought by the warrants to be hidden or destroyed. Such activity by the targets of the investigation would interfere with, inhibit, frustrate or even defeat the Commonwealth's ability to uncover evidence and to located evidence or persons involved.

I therefore ORDER in accordance with my powers under General Laws, Chapter 220, section 2 and Prescott Publishing v. Registrar of Probate, 395 Mass. 274 (1985) that the arrest warrant and any related documents as outlined above be impounded and sealed until a further order from this Court or any other Justice of the District Court or other Court having jurisdiction over any case resulting from the execution of the arrest warrant. However, the Plymouth County District Attorney's Office, through counsel assigned to the case, shall be permitted to obtain a copy of the application, affidavit, addenda, arrest warrant or related document, even though those materials are impounded, in order to provide those materials to the defense during the discovery process. The motion to

impound itself shall be impounded so as to not frustrate the interests sought in this motion.

DATED: 3-16-2023


JUSTICE

COMMONWEALTH OF MASSACHUSETTS

PLYMOUTH, SS

PLYMOUTH DISTRICT COURT
DOCKET NO.:

IN THE MATTER OF THE SEARCH WARRANT FOR:
ONE (1) TABLET WITH A BLUE CASE WITH A VISIBLE MODEL NUMBER OF
K72LL4 FOUND IN 47 SUMMER STREET, DUXBURY, MA

AFFIDAVIT IN SUPPORT OF COMMONWEALTH'S MOTION TO SEAL AND
IMPOUND

I, Jennifer Sprague, hereby depose and state the following:

1. I am an Assistant District Attorney;
2. I am assisting in a homicide investigation, which began on January 24, 2023 in the Town of Duxbury.;
3. The investigation is active and ongoing;
4. The materials that are the subject of this motion describe the focus of the investigation as well as the Commonwealth's view of the evidence which led to the issuance of the warrants;
5. The warrant affidavit contains information as to what steps the police have taken, are presently undertaking, and may undertake in the future, to further this investigation. The Commonwealth is concerned that evidence may be intentionally destroyed if potential suspects were to have the information contained in the search warrant, affidavit, and associated documentation. The Commonwealth is also rightfully concerned that parties involved may attempt to intimidate witnesses identified in the affidavit.
6. This may seriously impair or completely frustrate the ongoing investigation.
7. If the 1. The pertinent application for the search warrant, and any attachments, exhibits and addenda; 2. The accompanying affidavit submitted in support of said application for the search warrant, and any attachments, exhibits and addenda; 3. The subsequently issued search warrant; 4. The return of the search warrant; and 5. All other related paperwork, including the present motion and

corresponding affidavit continue to be publicly available, this may frustrate the Commonwealth's ability to obtain additional information relevant and material to the investigation.

Signed under the pains and penalties of perjury this 15th day of March, 2023.

Jennifer Sprague

Jennifer Sprague
Assistant District Attorney

SEARCH WARRANT

G.L. c. 276 sections 1-7

TRIAL COURT OF MASSACHUSETTS

DISTRICT COURT DEPARTMENT

Plymouth

Superior

SEARCH WARRANT DOCKET NUMBER

03678W 33

TO THE SHERIFFS OF OUR SEVERAL COUNTIES OR THEIR DEPUTIES, ANY STATE POLICE OFFICER, OR ANY CONSTABLE OR POLICE OFFICER OF ANY CITY OR TOWN, WITHIN OUR COMMONWEALTH:

Proof by affidavit, which is hereby incorporated by reference, has been made this day and I find that there is **PROBABLE CAUSE** to believe that the property described below:

has been stolen, embezzled, or obtained by false pretenses
is intended for use or has been used as the means of committing a crime
has been concealed to prevent a crime from being discovered
is unlawfully possessed

X is evidence of a crime or is evidence of criminal activity
other (specify) Murder

YOU ARE THEREFORE COMMANDED within a reasonable time and in no event no later than seven days from the issuance of this search warrant to search for the following property:

(1) Pink Apple iPhone with no identifiable serial number. This pink Apple iPhone was located in the second floor dresser, front left bedroom, at the residence of 47 Summer Street Duxbury, Massachusetts, as a result of a search warrant, which was executed on Wednesday January 25, 2023. This bedroom was identified by investigators as being occupied by Patrick Clancy (Date of Birth: and Lindsay Clancy (Date of Birth: 08/11/1990) of 47 Summer Street Duxbury, Massachusetts.

☒ At: See Attachment A

Which is in the possession of: Massachusetts State Police

☐ On the person or in the possession of

You are are not also authorized to conduct the search at any time during the night

You are are not also authorized to enter the premises without announcement

You are are not also commanded to search any person present who may be found to have such property in his or her possession or under his control or to whom such property may have been delivered

YOU ARE FURTHER COMMANDED if you find such property or any part thereof, to bring it, and when appropriate, the persons in whose possession it is found before the **BROCKTON DIVISION** of the District Court Department

Date Issued

3-9-23

Signature of Justice, Clerk-Magistrate, or Assistant Clerk

x Brendan H. Barnes

First or Administrative Justice

WITNESS:

Smith J.

Printed Name of Justice, Clerk-Magistrate, or Assistant Clerk

Brendan H. Barnes